

HOUSE No. 2228

The Commonwealth of Massachusetts

PRESENTED BY:

David Allen Robertson

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act providing appropriate care for certain populations.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>David Allen Robertson</i>	<i>19th Middlesex</i>	<i>1/16/2025</i>
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>10/14/2025</i>
<i>Christopher Richard Flanagan</i>	<i>1st Barnstable</i>	<i>10/14/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>10/14/2025</i>

HOUSE No. 2228

By Representative Robertson of Tewksbury, a petition (accompanied by bill, House, No. 2228) of David Allen Robertson for legislation to create forensic units in certain hospitalization settings. Mental Health, Substance Use and Recovery.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act providing appropriate care for certain populations.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1: Chapter 123 of the General Laws, as appearing in the 2020 Official Edition
2 is hereby amended in section 1 by inserting the following definition:-

3
4 “Forensic Unit” a physically separate unit from other units. These units shall have in
5 place restrictions consistent with those present when an individual is incarcerated. These units
6 shall include appropriate staffing levels to address the needs of the patient population and who
7 have undergone specialized training to work effectively with this patient population. The
8 physical environment of the unit shall be conducive to meeting the needs of the patient
9 population.

SECTION 2: Chapter 123 of the General Laws, as appearing in the 2020 Official Edition
is hereby amended by adding at the end of Section 15 the following section:-

(g) any individual admitted to a facility under the conditions described in paragraph (b) or
paragraph (e) shall be initially admitted to a forensic unit.

SECTION 3: Chapter 123 of the General Laws, as appearing in the 2020 Official Edition
is hereby amended by adding at the end of Section 16 the following section:-

(g) any individual admitted to a facility under the conditions described in paragraph (a),
(c) or paragraph (e) shall be initially admitted to a forensic unit.

SECTION 4: Chapter 123 of the General Laws, as appearing in the 2020 Official Edition
is hereby amended by adding at the end of Section 18 the following section:-

(e) any individual admitted to a facility under the conditions described in paragraph (a) or
paragraph (b) shall be initially admitted to a forensic unit.